

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cliv.]
*Provisional Order Confirmation (East Dean and
United Districts Joint Hospital District) Act, 1930.*



CHAPTER cliv.

An Act to confirm a Provisional Order of the Minister of Health relating to the East Dean and United Districts Joint Hospital District. A.D. 1930.
[1st August 1930.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament : 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (East Dean and United Districts Joint Hospital District) Act 1930. Short title.

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SCHEDULE.

EAST DEAN AND UNITED DISTRICTS JOINT
HOSPITAL DISTRICT.

*East Dean
and United
Districts
Order.*

*Provisional Order amending the East Dean and United
Districts Joint Hospital Orders 1911 and 1918.*

WHEREAS under the East Dean and United Districts Joint Hospital Orders 1911 and 1918 which were confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Acts 1911 and 1918 the urban districts of Awre Newnham and Westbury on Severn and the rural district of East Dean and United Parishes form a united district called the East Dean and United Districts Joint Hospital District for the purposes of the provision maintenance and management of hospitals for the reception of cases of infectious diseases other than smallpox and the governing body of the united district is the East Dean and United Districts Joint Hospital Board ;

And whereas by article XIX of the order of 1911 as amended by the order of 1918 provision is made with regard to the expenses of the Joint Board and the manner in which those expenses shall be borne by the constituent authorities ;

And whereas the Joint Board and the Councils of the constituent districts have applied to the Minister of Health for the issue of a provisional order amending the orders of 1911 and 1918 in manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by section 297 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short titles
and com-
mencement.

1.—(1) This order may be cited as the East Dean and United Districts Joint Hospital Order 1930 and this order and the East Dean and United Districts Joint Hospital Order 1911 may be cited together as the East Dean and United Districts Joint Hospital Orders 1911 and 1930.

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(2) This order shall come into operation on the first day of October nineteen hundred and thirty which day is in this order referred to as "the appointed day."

—
*East Dean
 and United
 Districts
 Order.*

2. This order shall be read as one with the East Dean and United Districts Joint Hospital Order 1911.

Order to be
 read as one
 with order of
 1911.

3. Article XIX of the East Dean and United Districts Joint Hospital Order 1911 is hereby repealed and so much of the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1918 as relates to the East Dean and United Districts Joint Hospital Order 1918 is hereby repealed.

Repeal.

4.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which all receipts of the Joint Board shall be carried.

Expenses of
 Joint Board.

(2) Each of the constituent authorities mentioned in the schedule to this order shall contribute to the common fund of the Joint Board the sums specified in that schedule in respect of the financial half-years therein mentioned.

(3) The rural district council of East Dean and United Parishes in respect of the financial year ending on the thirty-first day of March nineteen hundred and thirty-one and in respect of each subsequent financial year shall contribute to the common fund of the Joint Board the sum by which in that financial year the receipts of the Joint Board shall fall short of the expenditure of the Joint Board.

5.—(1) Subject to the provisions of this article the charges to be made by the Joint Board to the constituent authorities during any financial year in respect of patients maintained in the hospital during that year shall be a charge per day calculated to the nearest penny and derived from the average daily cost of the upkeep of the hospital during the financial year divided by the average number of patients in the hospital on each day of the year.

Calculation
 and payment
 of charges
 for patients.

(2) Within four weeks after the close of each financial year the Joint Board shall calculate the average daily amount of the expenditure charged in the accounts of the Joint Board for that year and the average number of patients in the hospital on each day of the year :

Provided that loan charges and the expenses of the purchase or hire of land the provision or alteration of buildings or the provision of furniture and fittings and the cost of the burial of patients dying in the hospital shall be excluded from the calculation of the average daily amount of the expenditure.

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(3) Within five weeks after the close of each financial year the clerk to the Joint Board shall transmit to the clerk to each constituent authority an account showing in respect of each patient maintained during that year in the hospital who was admitted from the district of that authority—

- (a) the name, and address of the patient;
- (b) the number of days in the year during which the patient was an inmate of the hospital;
- (c) the charge per day in respect of the patient calculated in accordance with the foregoing provisions of this article;
- (d) the charge for the year being the charge per day multiplied by the number of days in the year during which the patient was an inmate of the hospital;
- (e) a deduction in respect of any sum recovered by the Joint Board from or repaid to the Joint Board by or for the patient; and
- (f) the net sum claimed by the Joint Board as due for the maintenance of the patient from the constituent authority.

(4) For the purposes of this article the day on which a patient entered the hospital and the day on which he was discharged therefrom shall both be included as days on which the patient was an inmate of the hospital.

(5) Nothing in this order shall affect the liability of any constituent authority for the charge of four shillings and sixpence a day for each patient received in the hospital in respect of any period before the appointed day and in relation to the financial half-year commencing on the appointed day the foregoing provisions of this article shall have effect subject to the modification that references to a financial year shall be read as references to the financial half-year commencing on the appointed day.

Inclusion in
precepts of
charges for
patients.

6. The amount shown to be due from a constituent authority by the account prepared by the clerk to the Joint Board under the preceding article of this order shall be paid by that constituent authority and shall be included as a separate item of any precept which the Joint Board issue to the constituent authority under section 284 of the Public Health Act 1875 and in case of default shall be recovered in the manner authorised by that section.

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CONTRIBUTIONS BY CERTAIN CONSTITUENT AUTHORITIES TO
COMMON FUND OF JOINT BOARD.

Constituent Authority.	Half-year ending—		Each half-year subsequent to that ending 31st March 1931.
	30th September 1930.	31st March 1931.	
	£ s. d.	£ s. d.	£ s. d.
The Urban District Council of Awre - - -	10 0 0	15 0 0	15 0 0
The Urban District Council of Newnham - -	10 0 0	15 0 0	15 0 0
The Urban District Council of Westbury on Severn	15 0 0	22 10 0	22 10 0

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